

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA
FAMILY LAW DIVISION**

In re: the Marriage of:
SARAH HANSON,

Petitioner/Wife,

v.

Case No.: 2024-DR-1150

CHRISTOPHER HANSON,

Respondent/Husband.

**NOTICE OF LIMITED APPEARANCE ON BEHALF OF NON-PARTY RECORDS
CUSTODIAN/TRIAL COURT ADMINISTRATOR AND EMERGENCY MOTION TO
QUASH AND FOR PROTECTIVE ORDER**

PLEASE TAKE NOTICE that the undersigned counsel makes a special and limited appearance on behalf of Non-Party, **RECORDS CUSTODIAN/TRIAL COURT ADMINISTRATOR**, an unnamed Thirteenth Judicial Circuit employee. The **RECORDS CUSTODIAN/TRIAL COURT ADMINISTRATOR** has been requested to appear at a hearing in this action, being served with a subpoena. **RECORDS CUSTODIAN/TRIAL COURT ADMINISTRATOR** is not a party to this proceeding and is not moving to intervene.

The intent of this Notice of Special and Limited Appearance is to preserve the clarity of the Court's record and to facilitate the undersigned counsel's ability to address the Court on behalf of **RECORDS CUSTODIAN/TRIAL COURT ADMINISTRATOR** when the need arises.

Currently, non-party **RECORDS CUSTODIAN/TRIAL COURT ADMINISTRATOR** requests for this Court to address the Subpoena Duces Tecum for Hearing and this Motion to Quash said notice.

RECORDS CUSTODIAN/TRIAL COURT ADMINISTRATOR, for the Thirteenth Judicial Circuit, who is not a party to this action, by and through their undersigned counsel and pursuant to Florida Rules of Civil Procedure 1.280(c) and 1.410(e), hereby moves this Honorable Court to enter an order quashing the Subpoena Duces Tecum for Hearing (“Subpoena”) which was served upon them on May 19, 2026, and for entry of a protective order protecting them from being compelled to appear for testimony as directed by the Subpoena. Given the imminent date of the hearing at issue — May 29, 2026 — this motion is being filed as an emergency motion. In support hereof, the movant states as follows:

I. BACKGROUND.

1. On May 19, 2026, a Subpoena Duces Tecum for Hearing was served on **RECORDS CUSTODIAN/TRIAL COURT ADMINISTRATOR**. The Subpoena seeks the **RECORDS CUSTODIAN/TRIAL COURT ADMINISTRATOR** appearance and testimony at a hearing in this case and to appear with specific documents. *See* attached Exhibit “A.”
2. The Subpoena Duces Tecum commands **RECORDS CUSTODIAN/TRIAL COURT ADMINISTRATOR** to appear at a hearing scheduled for May 29, 2026 at 9:00 a.m.
3. The Subpoena Duces Tecum seeks documents that are subject to concurrent litigation within the Thirteenth Judicial Circuit. Mr. Hanson seeks for this subpoena to circumvent the procedures outlined in Rule 1.630, which Mr. Hanson initiated with separate Writ of Mandamus litigation, in order to obtain the video he was denied access to pursuant to Florida Rule of General Practice

and Judicial Administration 2.420(c)(8); Florida Statutes §119.071(3)(a); and Op Att’y Gen. Fla. 2015-06 (2015).

4. For the reasons set forth herein, **RECORDS CUSTODIAN/TRIAL COURT ADMINISTRATOR** respectfully requests this Honorable Court quash the Subpoena and protect them from being compelled to appear at the May 29, 2026 hearing.

II. ARGUMENT.

A. The Subpoena is unreasonable and oppressive and should be quashed.

Pursuant to Florida Rule of Civil Procedure 1.410(c), a subpoena may be quashed “upon motion made promptly and in any event at or before the time specified in the subpoena for compliance therewith . . . if it is unreasonable and oppressive.” A person to whom a subpoena is directed has standing to question the subpoena. *State Dep’t of Highway Safety & Motor Vehicles v. State Career Serv. Comm’n*, 322 So. 2d 64 (Fla. 1st DCA 1975); *Kridos v. Vinskus*, 483 So. 2d 727 (Fla. 4th DCA 1985).

The Subpoena Duces Tecum at issue, **RECORDS CUSTODIAN/TRIAL COURT ADMINISTRATOR** for the Thirteenth Judicial Circuit, testify in order to answer questions about a public records request which Mr. Hanson later initiated litigation. Mr. Hanson seeks to circumvent the procedures outlined in Rule 1.630, which Mr. Hanson initiated with his Writ of Mandamus litigation, in order to obtain the video he was denied access to pursuant to Florida Rule of General Practice and Judicial Administration 2.420(c)(8); Florida Statutes §119.071(3)(a); and Op Att’y Gen. Fla. 2015-06 (2015). That, in and of itself, is facially unreasonable and oppressive, and warrants quashing the Subpoena. Seeking testimony of **RECORDS CUSTODIAN/TRIAL**

COURT ADMINISTRATOR, in an attempt to circumvent ongoing litigation procedures, in reference to a collateral matter warrants quashing.

The subpoena of **RECORDS CUSTODIAN/TRIAL COURT ADMINISTRATOR** in this case is without question unreasonable and oppressive in violation of Rule 1.410(c). There are procedures to obtain these requested records and there is ongoing litigation, initiated by Mr. Hanson, for these same records. Florida Statutes § 119.071(3)(a)3 provides one of the procedures by which information made confidential and exempt under the security exemption may be disclosed: "Upon a showing of good cause before a court of competent jurisdiction." Rather than to even attempt to make a good cause showing to this Court why the security footage should be disclosed, Mr. Hanson chose to improperly issue this subpoena.

B. Good cause exists for a protective order.

Florida Rule of Civil Procedure 1.280(c) states that "for good cause shown, the court in which the action is pending may make any order to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense that justice requires, including . . . (1) that the discovery not be had . . ." Trial courts possess broad discretion in the treatment of discovery problems through the use of protective orders as contemplated by Rule 1.280. *Waite v. Wellington Boats, Inc.*, 459 So. 2d 425, 426 (Fla. 1st DCA 1984); *see also Towers v. City of Longwood*, 960 So. 2d 845, 848 (Fla. 5th DCA 2007).

Mr. Hanson seeks this Court to require the Non-Party to provide a public records request in the same format as one would provide discovery with this Subpoena Duces Tecum. There is no authority to support this position. Florida Statutes §119 provides for request, inspection, and copies of records, it does not require records to be provided in discovery style format. Mr. Hanson seeks for this Court to circumvent the procedures outlined in Rule 1.630, which Mr. Hanson

initiated with this litigation, in order to obtain the video he was denied access to pursuant to Florida Rule of General Practice and Judicial Administration 2.420(c)(8); Florida Statutes §119.071(3)(a); and Op Att’y Gen. Fla. 2015-06 (2015).

Given the ongoing Writ of Mandamus litigation, **RECORDS CUSTODIAN/TRIAL COURT ADMINISTRATOR** requests a protective order be entered. This circumvention of the continuous Writ of Mandamus and refusal to follow Florida Statutes creates an undue burden on **RECORDS CUSTODIAN/TRIAL COURT ADMINISTRATOR**.

III. CONCLUSION.

For the reasons set forth herein, **RECORDS CUSTODIAN/TRIAL COURT ADMINISTRATOR** for the Thirteenth Judicial Circuit, respectfully moves this Honorable Court for an order quashing the Subpoena Duces Tecum and protecting her from being compelled to appear and provide testimony at the May 29, 2026 hearing.

Respectfully Submitted,

JAMES UTHMEIER
ATTORNEY GENERAL

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CERTIFICATE OF SERVICE

I hereby certify that on May 27, 2026, I electronically filed the foregoing with the Clerk of Court by using the Florida Courts eFiling Portal which will serve those parties capable of receiving notice of electronic service.

/s/ Jessica Schwieterman
Jessica Schwieterman
Senior Assistant Attorney General